



File No.: EXP202317140

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On November 15 and 17, 2023, complaints were filed with the Spanish Agency for Data Protection (hereinafter, AEPD).

The complaints are directed against the entities AECORP 005, S.L. (NIF: B05470380) and FACTOR ENERGÍA, S.A. (NIF: A61893871), (hereinafter, AECORP and FACTOR-E), for the alleged violation of Law 11/2022, of June 28, General Telecommunications Law (hereinafter, LGTEL), Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD). The reasons for the complaints are as follows: The complainant states that they have received commercial calls on their phone line ***PHONE.1 from the numbers ***PHONE.2, ***PHONE.3, and ***PHONE.4, on November 14, 15, and 17, 2023, respectively.

In the first call, the interlocutor identifies themselves as A.A.A. from the energy management company that works with all companies and offers to renew their rate and a discount on the electricity bill, providing personal data such as name, surname, address, postal code, and indicates that the supplier for this year according to the postal code is Factor Energía and the distributor is the usual one.

In the second call, the interlocutor identifies themselves as B.B.B. from the complainant's energy management company, assigned by their electricity distributor, in this case, it is the AECORP group (responsible for renewal and billing) and using the same tactic, offers to renew their rate and a discount on the electricity bill, providing personal data such as name, surname, ID number, address, and indicates that the supplier that corresponds to them according to their postal code is Factor Energía, assigned by the complainant's distributor, which they indicate is Naturgy.

In the third call, the interlocutor identifies themselves as C.C.C. and indicates that they work for the energy management company of the complainant's distributor, offers to renew their rate and a discount on the electricity bill, indicating that the supplier is Factor Energía and the distributor is Iberdrola, providing their personal data such as name and address.

Along with the complaint, the following documents were submitted:

- Certificate of registration in the Robinson List for the line called since 07/27/2017;
- Ownership of their phone line;
- Screenshot; and
- Recording of the three calls.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to AECORP for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the transfer of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on December 1, 2023, and reiterated by the same means on January 31, 2024, with acknowledgment of receipt on February 1, 2024, as recorded in the acknowledgment of receipt in the file, with no response recorded.

THIRD: On February 15, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions of Title VIII of the LOPDGDD.

As a result of the actions taken, the following points have been noted:

- The Spanish Association of Digital Economy (Adigital) confirms that the complainant's phone line has been registered in the Robinson List since 07/27/17.
- It has been verified with the telephone operators that the three calling lines are owned by EXPERT MARKETING S.L. with NIF B05487814, located at C/ ARC DE SANT AGUSTÍ 3, AT. 1º - 08001 BARCELONA, (...). The three lines were activated on 11/02/23 and deactivated on 02/08/24.
- Information was requested from EXPERT MARKETING S.L. regarding the line ***PHONE.4 by postal means on 03/21/24, and it is recorded as Returned to Origin due to Excess (Not Collected at Office) on 04/10/24. A reiteration was made by postal means on 04/22/24, and it is recorded as Returned to Origin due to Excess (Not Collected at Office) on 05/29/24. A reiteration was made via email on 04/04/24, and the delivery notice from the mail server is recorded on the same day without delivery notification to the destination server, with no response received.
- Information was requested from EXPERT MARKETING S.L. regarding the lines ***PHONE.2 and ***PHONE.3 electronically on 04/04/2024, which is recorded as expired on 04/15/2024. A reiteration was made by postal means on 04/22/24, and it is recorded as Returned to Origin due to Excess (Not Collected at Office) on 05/29/24. A reiteration was made to the above email on 06/04/2024, and the delivery notice from the mail server is recorded on the same day without delivery notification to the destination server, with no response received.

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- With the identified telephone operator, it is verified that the contact line of EXPERT MARKETING S.L. is registered in the name of the entity EXPANSION CONSULTING 2020, S.L. with NIF B67628032 and installation and billing address at GRAN VIA DE LES CORTS CATALANES 617, 10 - 08007 BARCELONA. The line was activated on 30/05/23 and has not been canceled or had its ownership changed, nor has it been donated or resold during the period.
- Information is requested from EXPANSION CONSULTING 2020, S.L. by postal means on 10/06/24 and reiterated on 26/06/24, with acknowledgment of receipt by electronic appearance, respectively, on 11/6 and 26/6/2024, with no response received as of the date of this report.
- Information is requested from AECORP electronically on 27/03/24, which is recorded as delivered on the same day, regarding the reason for the calls to the claimant, and a response is received on 09/04/24 indicating that, "we do not have any documentation related to the claimant in our databases, therefore, we understand that he has never been our client. Furthermore, our company has a control for obtaining the data of potential clients, through which, at the moment of providing their data via a form, they are informed of their rights, and must confirm their processing, in order to be called; however, we have no record of any inquiry or call from this gentleman."
- Information is requested from AECORP on 19/04/24 and 08/05/24, and on 18/6 and 04/07/24, regarding the reason for making commercial calls to attract clients for energy marketers, and about the procedure for obtaining data from 11/12/23 to the present and the contract with FACTOR ENERGIA. A response is received on 16/5 and 08/07/24 stating:
 - o The company acts as a commercial intermediary for other companies, managing sales through collaborators who attract clients. These clients enter their data on a website, with security measures provided by LleidaNetworks. The company conducts audits and manages sales that result in contracts between the clients and the contracting company, primarily for electricity supply.
 - o 1. Reasons for making commercial calls (since 11/12/23).- Renewal of contracts with existing clients and presentation of new offers for electricity and gas.
 - o 2. Source and method of obtaining data for commercial calls.- The data is obtained by purchasing leads from external companies or through collaboration with specialized channels in client acquisition.
 - o 3. Procedure for obtaining the data.- The company does not directly know how the data is obtained, as it acquires it from third parties.
 - o 4. Date and means of receiving the data, identification of the third party, and contract.- The data was

provided by BLEISOR SOLUTIONS SAS. The contract and identifying details of this company are documented and attached to the file.

- o 5. Contract with BLEISOR SOLUTIONS S.A.S. or other third parties.- A signed database transfer contract dated 4/12/23 is attached.

- o 6. Contract with FACTOR ENERGÍA S.L. or other marketers.- No contract with FACTOR ENERGÍA is provided. Only an agency contract with CALL-NIC BUSINESS BARCELONA, S.L., signed on 27/10/23, is presented. In it, AECORP appears as the agent for campaigns of ACIS ENERGÍA and NABALIA ENERGÍA.

- o 7. Each company defines its own quality parameters for calls, verifications, SMS, and welcome processes.

- o 8. Complaints regarding data protection rights.- The company assures that it properly manages all requests for data cancellation. It deletes records and data in case of a complaint.

- o Final observation of the investigation.- It is confirmed that the active website on the dates of the claimed calls was www.grupoaecorp.com, where users entered data such as phone number and CUPS, accepting the privacy policy via certified or non-certified SMS.

- Information is requested from AECORP electronically on 11/07/24 regarding the reason for making commercial calls to attract clients for energy marketers from 7/2/23 to the present (which includes the dates of the claimed calls from 14 to 17/11/23) and the contracts with marketers/Callers, and a response is received on 20/7/24 stating:

- o The calls were made with the aim of renewing contracts with existing clients in the company's portfolio and offering new supply proposals for electricity and gas to potential new clients.

- o The contact data of the clients was obtained through the purchase of leads from external companies with channels in client acquisition.

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It is confirmed that the claimed calls were made before the signing of the contract with the company BLEISOR.

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When a claim is received, the company: Cancels the ongoing processing. Deletes all data and records of the claimant. The management of these cases is carried out in accordance with the current data protection regulations.

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Information is requested from AECORP electronically on the dates 17/05/24 and 05/06/24 regarding the contract with FACTOR ENERGÍA, and a response is received on 18/06/2024 providing the assignment agreement with subrogation of the Agency Contract (Telemarketing) dated 29/07/21, where DOSORIANOSBAR SERVICES S.L. with NIF B25853490 is listed as the assignor and guarantor, AECORP 005 S.L. as the assignee or agent, and FACTOR ENERGÍA, S.A. as the company.

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On 05/06/24, information is requested from AECORP electronically regarding the signed contract with EXPERT MARKETING, and a response is recorded on 18/06/2024 stating that: AECORP005, S.L. has no commercial relationship whatsoever with EXPERT MARKETING S.L. for the execution of advertising call campaigns for customer acquisition and/or to offer them energy contracts. It does not respond to the question about the procedure followed and the identification of all actors involved in the customer acquisition campaign in the energy sector during the indicated period.

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On 27/06/24, information is requested from AECORP electronically regarding the commercial relationship with EXPANSION CONSULTING 2020 S.L., and to provide the contract between the parties. A response is received on 03/07/2024 stating that: "...the relationship between AECORP 005

SL and the company, EXPANSIÓN CONSULTING 2020 S.L. with NIF B67628032 was one of collaboration for customer acquisition. The activity that this company develops, as a commercial intermediary, involves hiring several collaborators who are responsible for customer acquisition. These collaborators offer them to enter our website, so that through a security control guaranteed by the company LleidaNetworks, they indicate their data, requesting that we contact them to manage the sale. The customers ultimately contract the service with the company that hires us, in this case, electricity supply as indicated. That is to say, we are responsible for conducting audits and managing the sale with those customers provided by our collaborators, for the contracting with the company that hires us, offering that protection and security in the contracting. Currently, this collaboration has ceased, therefore we attach the CESE of COLLABORATION between both companies. January 11, 2024.”

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Information is requested from FACTOR ENERGÍA on 18/03/24 regarding the origin of the calls to the claimant's phone and the contract with AECORP, and a response is received on 15/04/24 stating that: “There are no records of calls from FACTOR ENERGÍA to the claimant's phone on the indicated dates or on any other, this number is not associated with any customer file nor any contract or associated service. FACTOR ENERGÍA has with AECORP C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeapd.gob.es

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a commercial agency contract, not a service provision contract, this company carries out the task of promoting the sales of the products and services of FACTOR ENERGÍA. This company acts as a commercial agent as a sales channel through the modality of telephone sales (telemarketing) using its own means and database (not provided by FACTOR ENERGÍA). AECORP makes the commercial offer of the products and services of FACTOR ENERGÍA by telephone based on its own databases and only sends the personal data of those individuals who have provided it within the framework of a contract, only in the case that the individuals correctly confirm the contracting of the product or service in question with FACTOR ENERGÍA through the established means. Only after the agent company sends a contract in accordance with the forms, to validate and activate with FACTOR ENERGÍA is when it incorporates into the system the personal data of the client and proceeds to process it to manage the contractual relationship and in accordance with the purposes informed in its contract. In this case, it is not recorded that the aforementioned agent company has sent FACTOR ENERGÍA any contract with the associated telephone number.”

LEGAL GROUNDS

I

Competence.

According to the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

The fourth additional provision “Procedure in relation to the competences attributed to the Spanish Agency for Data Protection by other laws” establishes that: “The provisions in Title VIII and its

development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competences attributed to it by other laws.”

II

Summary of the facts

According to the file, the complainant received several unwanted commercial calls, despite being registered in the Robinson List since July 2017.

During the investigation, it was identified that the calling telephone lines were owned by EXPERT MARKETING, S.L., according to confirmation from the telecommunications operators, but this entity has not responded to the repeated requests for information sent by postal and electronic means by the

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of this Agency, which has made it impossible to determine the origin, cause, or final recipient of the telephone campaigns in question.

On the other hand, AECORP 005, S.L., an entity whose possible connection to these calls was under analysis, has provided responses denying at all times its participation in the calls subject to the complaint and has repeatedly stated that the complainant's number was not in its databases. It has also expressly denied any type of commercial or contractual relationship with EXPERT MARKETING, S.L. (holder of the phone numbers from which the commercial calls were made). There is no record of any contract, agreement, or documentary evidence to the contrary.

For its part, FACTOR ENERGÍA has indicated that its relationship with AECORP is framed within an agency contract (telemarketing), in which AECORP acts with autonomy and independence and uses its own means and databases. No personal information of clients is provided from FACTOR ENERGÍA, and AECORP only forwards the data of clients who have voluntarily confirmed a contract, and in this specific case, FACTOR ENERGÍA has confirmed that it did not receive any data associated with the complainant's phone number, nor does it have any record of a contract or relationship with him.

III

Conclusion

Article 66.1.b) of the LGTEL establishes the following: 1.- Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of publicly available interpersonal communication services based on numbering shall have the following rights: ... b) not to receive unwanted calls for commercial communication purposes, unless there is prior consent from the user themselves to receive such commercial communications or unless the communication can be covered by another basis of legitimacy as provided in Article 6.1 of Regulation (EU) 2016/679 on the processing of personal data...”.

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection. All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the making of the calls as indicated, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the complainant and the respondents.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection.

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